

Amendment No. 1 to HB1149

Todd
Signature of Sponsor

AMEND Senate Bill No. 964*

House Bill No. 1149

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 69, Chapter 9, Part 2, is amended by adding the following as new sections:

69-9-229.

(a)

(1) Commercial paddle craft operators who use agency boat ramps are required to pay to the agency a fee of forty-two cents (42¢) each time a nonmotorized vessel controlled by a commercial paddle craft operation utilizes an agency boat ramp.

(2) Each use of an agency boat ramp to launch a nonmotorized vessel into the water, remove the vessel from the water, or both as part of a single trip constitutes a single occurrence for the purpose of imposing the fee prescribed in subdivision (a)(1).

(3) Commercial paddle craft operators who pay the fee prescribed in subdivision (a)(1) shall receive parking lot passes issued by the agency in the form of stickers to be applied prominently on vehicles and trailers for the use of agency ramps for unloading, loading, and conducting general business operations.

(4) This subsection (a) does not apply to commercial paddle craft operators using agency boat ramps on the Ocoee River.

(b)

(1) The agency shall not, through other means, including rulemaking, increase or charge any additional fees, impose any other expense, restriction, requirements, or cost to a commercial paddle craft operator related to an operator's parking lot pass or annual permit.

(2) The agency shall manage boat ramps and parking lots for public safety, but shall not impose restrictions on the hours of operation for boat ramps and parking lots to the extent that such restrictions are shorter in duration than existing boat ramp or parking lot hours of operation.

(3) The restrictions imposed on the agency under subdivisions (b)(1) and (2) are effective through June 30, 2027.

(c)

(1) Subject to subdivision (c)(2), a commercial paddle craft operator who fails to obtain a permit or remit payment for the use of an agency boat ramp under this section is:

(A) Subject to a fine of one thousand dollars (\$1,000); and

(B) Prohibited from applying for a permit for a period of time to be determined by the agency.

(2) Prior to the imposition of the penalty prescribed under subdivision (c)(1), a commercial paddle craft operator has sixty (60) days from the date the fine was imposed to submit sufficient proof to the agency that the violation has been corrected and, upon a determination of such correction by the agency, the fine must be waived and the operator may apply for a permit.

69-9-230.

Beginning October 1, 2025, retailers shall report annually to the department of revenue the sales of non-motorized vessels and equipment used in association with paddle sports, including the following items:

(1) Kayaks;

- (2) Canoes;
- (3) Water shoes;
- (4) Paddles;
- (5) Life jackets;
- (6) Kayak fishing gear;
- (7) Kayak coolers;
- (8) Inflatable river tubes;
- (9) Waterproof dry bags;
- (10) Kayak-specific accessories;
- (11) Roof racks;
- (12) Kayak transport carts; and
- (13) Seat backs.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.